

INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor Agreement (the "Agreement") is made and entered into as of 24th March, 2025, by and between:

1. **ABC Tech Pvt. Ltd.**, a company incorporated under the Companies Act, 2013, having its registered office at [Company Address], hereinafter referred to as the "Company," which expression shall, unless repugnant to the context, mean and include its successors, administrators, and assigns;

AND

2. **Rahul Mehta**, an independent contractor, having his principal place of business at [Contractor's Address], hereinafter referred to as the "Contractor," which expression shall, unless repugnant to the context, mean and include his heirs, legal representatives, and assigns.

WHEREAS:

1. The Company is engaged in the business of software development and intends to develop a mobile application as part of its project requirements;
2. The Contractor represents that he has the necessary expertise, experience, and technical proficiency to undertake the development of a cross-platform mobile application for Android and iOS;
3. The Company wishes to engage the Contractor to perform certain services as set forth in this Agreement, and the Contractor agrees to provide such services on an independent contractor basis;
4. Both parties desire to set forth the terms and conditions governing their contractual relationship.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein, and intending to be legally bound, the parties agree as follows:

1. DEFINITIONS

For the purposes of this Agreement, the following terms shall have the meanings set forth below:

1.1 **“Agreement”** means this Independent Contractor Agreement, including all Annexures, amendments, and modifications thereto.

1.2 **“Services”** refers to the development, coding, testing, and implementation of a cross-platform mobile application for Android and iOS, as further detailed in the Scope of Work.

1.3 **“Confidential Information”** means any proprietary or sensitive information disclosed by the Company to the Contractor, including but not limited to source code, business strategies, financial details, trade secrets, customer data, and intellectual property.

1.4 **“Intellectual Property”** refers to all copyrights, patents, trademarks, trade secrets, and other proprietary rights in and related to the mobile application developed under this Agreement.

1.5 **“Effective Date”** means the date on which both parties execute this Agreement.

1.6 **“Term”** means the duration for which this Agreement shall remain in effect, as defined in Clause 7.

1.7 **“Force Majeure”** means any event beyond the reasonable control of either party that prevents or delays the performance of any obligation under this Agreement, including but not limited to natural disasters, strikes, war, governmental restrictions, and cyber-attacks.

2. SCOPE OF WORK

2.1 The Contractor shall be responsible for the complete development of a cross-platform mobile application for Android and iOS, ensuring all required functionalities are integrated as per the specifications provided by the Company.

2.2 The Contractor shall develop the application in accordance with industry best practices, including but not limited to secure coding, user experience optimization, and performance enhancements.

2.3 The Contractor agrees to follow a milestone-based delivery approach as detailed in **Annexure A**, with each milestone subject to review and approval by the Company.

2.4 The Contractor shall provide regular progress updates and ensure transparent communication regarding the status of the project.

2.5 The Contractor shall be responsible for fixing any bugs, errors, or functional defects identified during the development phase and within the agreed-upon post-launch support period of one (1) month.

2.6 Any modifications beyond the agreed scope shall require prior written approval and may be subject to additional compensation, to be mutually determined by both parties.

2.7 The Contractor agrees to comply with all applicable laws and industry standards while developing the application, including data protection regulations and cybersecurity measures.

3. COMPENSATION & PAYMENT TERMS

3.1 The Company agrees to compensate the Contractor with a total payment of ₹4,50,000 (Four Lakhs Fifty Thousand Rupees) for the successful completion of the project.

3.2 Payments shall be made as per the following schedule:

- 30% (₹1,35,000) upon execution of this Agreement and commencement of the project.
- 40% (₹1,80,000) upon successful delivery of the Minimum Viable Product (MVP) as per the specifications.
- 30% (₹1,35,000) upon final project acceptance and completion of all contractual obligations.

3.3 Payments shall be processed via Bank Transfer to the Contractor's designated account.

3.4 The Contractor shall be responsible for all applicable taxes, including GST at 18% and Income Tax. The Company shall deduct TDS at 10% as per Section 194C of the Income Tax Act and issue a TDS certificate.

4. INDEPENDENT CONTRACTOR RELATIONSHIP

4.1 The Contractor acknowledges that he is an independent contractor and shall not be treated as an employee of the Company.

4.2 The Contractor shall not be entitled to any employment-related benefits, including but not limited to Provident Fund (PF), Employee State Insurance (ESI), bonuses, paid leaves, or gratuity.

4.3 The Contractor shall retain full autonomy over how the services are performed, provided they align with the agreed specifications and timelines.

5. CONFIDENTIALITY & NON-DISCLOSURE

5.1 The Contractor acknowledges that during the course of this Agreement, he may have access to confidential and proprietary information of the Company.

5.2 The Contractor agrees:

- To maintain strict confidentiality regarding any such information.
- Not to disclose, share, or utilize any Confidential Information for personal or third-party benefit.
- To return or destroy all Confidential Information upon termination of this Agreement.

5.3 Any breach of this clause shall render the Contractor liable for damages amounting to ₹5,00,000 (Five Lakhs Rupees) and may result in legal action.

6. INTELLECTUAL PROPERTY RIGHTS

6.1 All intellectual property created under this Agreement shall be the exclusive property of the Company.

6.2 The Contractor shall have no rights to use, resell, or distribute any portion of the project without prior written consent from the Company.

6.3 Upon full payment, the Company shall hold complete ownership of the mobile application and all related intellectual property rights.

7. TERM & TERMINATION

7.1 This Agreement shall commence on the Effective Date and remain in force until the completion of all services unless terminated earlier in accordance with this clause.

7.2 Either party may terminate this Agreement with 7 days' written notice in case of non-performance, breach of contract, or failure to meet obligations.

7.3 Upon termination, the Contractor shall cease all work and return any Company assets or materials in his possession.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

For ABC Tech Pvt. Ltd.

Authorized Signatory: _____

Name: Raman Verma

Designation: Managing Director

Date: 25-03-2025

For Contractor (Rahul Mehta)

Signature: _____

Name: Rahul Mehta

Date: 25-03-2025

Lawyers in Making.



LEGAL SPECS

Lawyers in Making.